24CHCV04747 24CHCV04747

County: los-angeles

Division: Civil Law and Motion

Department: F49

Hearing date: 2026-07-22

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF49%2C07%2F22%2F2026

Source SHA-256: 75bdd4bba54cbe2f542c1759b313089249862ad93cb0e6ae7eebab8efce3a41c

Case Number: 24CHCV04747 Hearing Date: July 22, 2026 Dept: F49

Dept. F49

Date: 7/22/26

Case Name: Arutyun Khacheryan vs. General Motors, LLC;
and Does 1-10

Case No. 24CHCV04747

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 22, 2026

MOTION FOR
ATTORNEYS' FEES AND COSTS

Los Angeles Superior
Court Case No. 24CHCV04747

Motion filed: 7/22/26

MOVING PARTY: Plaintiff Arutyun Khacheryan

RESPONDING PARTY: Defendant General Motors, LLC

NOTICE: OK

RELIEF REQUESTED: An order from this Court awarding Plaintiff attorney fees in the amount of $33,373.80 and costs in the amount of $1,709.41.

TENTATIVE RULING: The Motion is GRANTED IN PART.

BACKGROUND

This action arises from alleged defects in a 2023 Chevrolet Silverado (the "Subject Vehicle") purchased by Plaintiff Arutyun Khacheryan ("Plaintiff") and manufactured by Defendant General Motors, LLC ("Defendant"). On December 23, 2024, Plaintiff filed the Complaint against Defendant and Does 1-10, alleging violation of the Song-Beverly Consumer Warranty Act. On February 6, 2025, Defendant filed an Answer.

On December 5, 2025, Plaintiff filed a Notice of Acceptance of Defendant's settlement offer. On December 12, 2025, the Court entered judgment for Plaintiff in the amount of $40,000.00, plus attorney fees, costs, and expenses to be determined via noticed motion.

On January 23, 2026, Plaintiff filed a Memorandum of Costs, claiming total costs in the amount of $1,709.40. Subsequently, on July 13, 2026, the Court denied Defendant's motion to tax the Memorandum of Costs, and interlineated the December 12, 2025 judgment to add costs in the amount of $1,709.40.

On February 17, 2026, Plaintiff filed the instant motion for attorney fees and costs (the "Motion").

On July 9, 2026, Defendant filed an Opposition.

On July 15, 2026, Plaintiff filed a Reply.

ANALYSIS

Attorney fees are allowed as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).)¿ In a lemon law action, costs and expenses, including attorney fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (See Civ. Code, § 1794, subd. (d).)¿

Pursuant to the Song-Beverly Consumer Warranty Act, "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)¿

The attorney bears the burden of proof as to the "reasonableness" of any fee claim. (Code Civ. Proc., § 1033.5, subd. (c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (Ibid.)¿

A plaintiff's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488, quoting Premier Medical Management Systems, Inc. v. Cal. Insurance Guarantee Assn. (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (Horsford v. Board of Trustees of Cal. State University (2005) 132 Cal.App.4th 359, 395.)¿

In determining reasonable attorney fees, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) These factors include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award. (Ibid.)¿

A. Evidentiary Objections

Plaintiff objects to the declaration of Natalie Keshishian in support of Defendant's Opposition. The following objections are SUSTAINED: Nos. 1-3 (foundation).

The following objection is OVERRULED: No. 4.

B. Attorney Fees

(1) Prevailing Buyer

The judgment entered on December 12, 2025 designates Plaintiff as the prevailing party for the purpose of any fee motion pursuant to Civil Code section 1794, subdivision (d). (Judgment, ¶ 2.) Defendant does not dispute that Plaintiff is a prevailing buyer. Instead, Defendant asserts that the claimed fees are disproportionate to the scope and duration of the litigation. The Court accordingly finds that Plaintiff is a prevailing buyer pursuant to Civil Code section 1794, subdivision (d).

(2) Reasonableness of Hourly Rates

The reasonable hourly rate is the "prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133, emphasis in original.) "The experienced trial judge is the best judge of the value of professional services rendered in [their] court." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1086.)¿

Plaintiff seeks to recover attorney fees for work performed by counsel Joseph A. Kaufman ("Kaufman") and paralegal Melissa Lopez ("Lopez") as follows:

(a) Kaufman, $595/hour in 2024 and 2025, and $615/hour in 2026, for 48.1 total hours expended;

(b) Lopez, $175/hour for 2.5 total hours expended.

(Mot., at pp. 6-7; Kaufman Decl., ¶ 17, Exh. 1.) In support of these rates, Kaufman attests to his education, qualifications, and experience. (Kaufman Decl., ¶¶ 7-13.) Kaufman is an experienced lemon law litigator who has handled comparable matters on behalf of both plaintiffs and defendants for 23 years, is a member of several consumer protection legal organizations, and has published articles on lemon law developments. (Id., ¶¶ 7-8.) In presenting his experience, Kaufman cites several cases in which his prior rate of $595 per hour was approved. (Id., ¶ 11.) Kaufman also presents the rates of partners at other firms engaged in plaintiff-side lemon law practice. (Id., ¶ 16.)

Defendant does not challenge the foregoing rates as unreasonable. Rather, Defendant claims that, insofar as Kaufman's rate reflects the contingent nature of the litigation, it is improper for the Motion also to seek a multiplier based on contingency. (Opp'n, at p. 8.) Defendant provides no basis for asserting that the foregoing rates do not represent the prevailing rates for non-contingent litigation in lemon law matters. The Court accordingly finds that the rates are reasonable non-contingent rates for a law partner and paralegal.

(3) Reasonableness of Hours Incurred

Plaintiff supports the requested lodestar figure with a billing invoice reflecting 48.1 hours of legal work performed across multiple stages of litigation, including pre-litigation case preparation, discovery, settlement negotiation, and preparation and filing of the Motion. (Kaufman Decl., Exh. 1.) Kaufman attests that the invoice is a true and correct copy of his firm's billing in the case (Id., ¶ 2.) This verified invoice is sufficient to establish that the hours were necessarily incurred. (Hadley, supra, 167 Cal.App.3d, at p. 682.) The burden is thus on Defendant to challenge specific items with adequate authority and evidence.

Defendant argues that the hours claimed by Kaufman are unreasonably billed because the litigation relied heavily on template pleading and discovery. (Opp'n, at p. 4.) Specifically, Defendant contends that the following work hours should be reduced because they are "padded": (1) 3.8 hours of pre-litigation correspondence and conferencing with Plaintiff; (2) 2.2 hours spent conferring with Plaintiff regarding litigation strategy and goals; (3) 6.9 hours for "block-billed clerical entries" including case review and receipt of notices; and (4) 4.0 hours expended communicating with Defendant's counsel over the course of the litigation, (5) 4.0 total hours spent responding to discovery and reviewing Defendant's discovery responses, and (6) 6.0 hours spent in connection with the Motion. (Id., at pp. 4-7.)

(a)

Pre-Litigation Correspondence

Defendant contends that pre-litigation correspondence is an overhead expense that should not be chargeable to a client and is accordingly not chargeable to an adversary. (Opp'n, at p. 4.) Defendant adds that the time spent on pre-litigation communication is excessive and should be stricken in its entirety. (Ibid.) Defendant cites no state law authority precluding recovery of attorney fees for pre-litigation investigation and case evaluation.

The plain language of Civil Code section 1794, subdivision (d) permits recovery of attorney fees reasonably incurred in connection with the commencement as well as the prosecution of an action. The Court agrees with Plaintiff that tasks such as gathering and reviewing relevant documents, ascertaining the issues and the client's litigation goals, and establishing strategy are essential to the commencement of litigation. (Reply, at p. 3; see Kaufman Decl., Exh. 1.) Further, the hours do not appear unreasonable on their face, and Defendant does not identify any specific line items in the billing invoice that are excessive.

(b)

Communications Regarding Strategy/Settlement

Defendant argues that time billed from January 7, 2025 through January 12, 2026 communicating with Plaintiff regarding case strategy, conducting an informal inspection of the Subject Vehicle, and discussing developments in settlement negotiations was “wholly unnecessary” given that Kaufman had already discussed strategy with the Plaintiff in December 2024. (Opp’n, at p. 5; see Kaufman Decl., Exh. 1.) Defendant requests that the Court reduce the fees for these entries by 2.2 hours. (Opp’n, at p. 5.) These entries total some four hours of in-person or email communication between Kaufman and Plaintiff over the course of a year. (Kaufman Decl., Exh. 1.)

Although Defendant contends that “almost nothing happened in the case from the date the Complaint was filed until it finally settled,” rendering client communication “wholly unnecessary” (Opp’n, at p.5), some developments had to have occurred in the interim for the parties to reach agreement. Plaintiff correctly notes that an attorney has an ethical duty to keep the client reasonably informed about developments related to the representation and to explain matters to the extent reasonably necessarily for the client to make informed decisions about the case. (See Prof. Conduct Rule 1.4.) Four hours of communication spanning one year are not facially excessive in light of this obligation.

(c)
Clerical Entries

Defendant contends that Plaintiff’s time for tasks such as file review and receipt of notices should be capped at one hour because they represent clerical tasks that are not properly chargeable. (Opp’n, at p. 5.) Defendant also asserts that clerical entries are block-billed with other tasks such that the reasonableness of the entries may not be assessed. (Ibid.)

Block billing is not objectionable per se. (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1325.) However, a court may determine that a fee request was padded where the vagueness of billing entries obscures the nature of the work performed. (Ibid.) Here, the Court finds that the billing invoice describes with sufficient detail the tasks for which Plaintiff’s counsel is seeking recovery. For example, the entry for October 27, 2025 describes Kaufman’s 0.5 of work as “Review correspondence from N. Keshishian re settlement negotiations and memo re the same (.2); detailed correspondence to client re analysis of settlement options (.3).” (Kaufman Decl., Exh. 1.)

As to clerical tasks, Defendant points to no specific billing entries that it claims are improper, but asserts that tasks such as “receipt” of notices and other documents are billed throughout. (Opp’n, at p. 5.) Upon review, Plaintiff’s counsel billed 0.4 hours for receipt of notices of judicial assignment and case management conference on January 16, 2025, and 0.5 hours for receipt of a minute order regarding scheduling on October 5, 2025. (Kaufman Decl., Exh. 1.)

A trial court retains discretion to reduce a fee amount where apparently clerical tasks are billed at excessive rates. (Save Our Uniquely Rural Community Environment v. County of San Bernardino (2015) 235 Cal.App.4th 1179, 1188 [finding no abuse of discretion where trial court found partner rates for tasks such as calendaring and preparing proofs of service to be excessive].) The Court agrees that receipt of documents and calendaring of dates are clerical in nature and are not appropriately billed at the rate of a law partner. The Court accordingly discounts 0.9 hours from Kaufman’s 2025 billing entries.

The remaining billing entries that include document receipt among the description appear to be primarily billed for review of those documents and correspondence related to them. The Court does not find the hours billed for these entries to be excessive.

(d)
Communications with Defendant’s Counsel

Defendant contends that the amount of time spent communicating with Defendant’s counsel was unnecessary given the brevity of “active litigation.” (Opp’n, at pp. 5-6.) Specifically, Defendant asserts that time entries related to communications with Defendant’s counsel regarding deposition, settlement, and mediation were unnecessary because most of the work involved in the action consisted of procedural developments. (Ibid.) Defendant also contends that these communications are improperly block-billed with other tasks. (Ibid.)

Defendant again fails to identify

specific entries that are objectionable, and the Court rejects the assertion that communication regarding discovery, mediation, and settlement are only necessary to litigation where parties are “actively” mediating or taking depositions.

(e)
Discovery

Defendant argues that the time billed for preparation and review of Plaintiff’s discovery responses and the conduction of an informal vehicle inspection is overstated and should be capped at one hour because Plaintiff’s discovery responses were based on templates wherein “only the caption has been changed.” (Opp’n, at p. 6.) Plaintiff contends that discovery responses necessarily vary by client, and that four hours spent conducting a vehicle inspection and responding to four sets of discovery totaling 119 discovery requests is not unreasonable. (Reply, at p. 5.)

Defendant also argues that the 1.7 hours billed for reviewing Defendant’s discovery responses should be limited to no more than 0.7 hours. (Opp’n, at p. 6.) Plaintiff avers that Defendant’s discovery responses included hundreds of pages of document production that needed to be reviewed. (Reply, at p. 6.)

While Defendant takes for granted that all lemon law actions are identical, the Court agrees with Plaintiff that similarities in the issues presented do not justify an attorney presuming to know what the responses will say before reviewing them. Similarly, responding to discovery necessarily involves individualization to the particular facts of a plaintiff’s action. Defendant provides no competent evidence to support its assertion that Plaintiff’s counsel merely changed the caption on the discovery responses served on Defendant without ensuring their accuracy.

The Court does not find the discovery-related billing entries to be unreasonable.

(f)
The Fee Motion

Defendant asserts that the nine

total hours billed in connection with the instant Motion is unreasonable. (Opp'n, at pp. 7.) Defendant argues that the fees are excessive because the work involved in the Motion is standard and templated argument that does not require extensive effort. (Ibid.)

Plaintiff asserts that its billing entries include only six hours in connection with the Motion, three for preparation of the Motion and supporting declaration, and three total to review the Opposition, draft a Reply, and attend the hearing. (Reply, at p. 7.) Plaintiff also contends that the time spent on the Motion has already been significantly reduced by Plaintiff's counsel. (Id., at p. 8.)

The Court acknowledges that the Motion presents routine fee issues that an experienced lemon law litigator would not highly differentiate from other motions of this type. Given that the Motion presents no novel or complex issues, the Court reduces the time billed in connection with the Motion, including preparation of the Motion, supporting, and Reply papers, review of the Opposition, and appearance at the hearing, to 4.5 hours, a reduction of 1.5 hours.

Based on the foregoing, the Court determines the lodestar amount to be $26,307.50, as follows: $595.00 x 34.9 hours' work by Kaufman in 2024 and 2025, plus $615.00 x 8.3 hours' work by Kaufman in 2026, plus $175.00 x 2.5 hours' work by Lopez.

(4) Lodestar Multiplier

Once the lodestar figure is determined, the Court may adjust the figure based on relevant factors. (Ketchum, supra, 24 Cal.4th, at p. 1132.) Factors that may be relevant include: "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (Ibid.)

Plaintiff requests a lodestar enhancement of 1.2 based on the risks undertaken in the representation, the successful result, and the delay in payment of counsel. (Mot., at p. 9.) Defendant contends that Plaintiff exaggerates the contingency risk in this action considering Plaintiff's counsel's extensive experience in lemon law litigation.

(Opp'n, at p. 9.)

The Court notes that Plaintiff's counsel took the case on a contingency basis, advancing all costs. (See Kaufman Decl., ¶ 14.) Considering all the foregoing factors, however, the Court finds that a multiplier is unwarranted. While Plaintiff's counsel did undertake some risk, the matter resolved within months after filing, did not involve extensive litigation or motion practice that would preclude other employment, and involved no novel or difficult issues considering the experience of counsel.

Based on the foregoing, the Court GRANTS the Motion in the reduced amount of $26,307.50.

(c) Reasonable Costs and Expenses

Under the Song-Beverly Act, a prevailing buyer shall be allowed to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses. (See Civ. Code § 1794, subd. (d).) A properly verified memorandum of costs generally satisfies the prevailing party's initial burden of establishing that the claimed costs were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.)

As Defendant notes in Opposition, the costs Plaintiff requests have already been resolved via a separate motion to tax costs, which the Court denied on July 13, 2026. The judgment has already been interlineated to include the $1,709.40 itemized in Plaintiff's Memorandum of Costs. (Minute Order, July 13, 2026, at p. 1.) The request for costs is accordingly moot.

CONCLUSION

Plaintiff Arutyun Khacheryan's motion for attorney fees and costs is GRANTED IN PART. The Court awards $26,307.50 in reasonable attorney fees in favor of Plaintiff and against Defendant General Motors, LLC. The request for costs is DENIED AS MOOT.

Moving party to give notice.